



POLICE DEPARTMENT

February 6, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202408002 (Incident Date: August 9, 2024) regarding Police Officer Guo Chu,
Tax No. 959550 (PODS Case No. C-036142)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Guo Chu and has determined that the proposed penalty of a Schedule "A" Command Discipline is not warranted.

In this matter, Police Officer Chu activated his body-worn camera late when ejecting the complainant off the subway. However, there are several mitigating factors that warrant no disciplinary action. Police Officer Chu's late activation was due to actively ejecting the complainant from a train. Police Officer Chu stated he put on his gloves prior to engaging with the complainant, so he would not receive any cuts on his hands. Police Officer Chu took this safety measure due to the complainant's refusal to disembark the train while in possession of a bicycle. Subsequently, Police Officer Chu eventually activated his body-worn camera when the complainant was removed from the train and continued to record the interaction as the complainant was ejected from the transit system. Based on the totality of the circumstances involving this matter and Police Officer Chu, the Police Commissioner is directing no disciplinary action involving the late activation.

With respect to the business card allegation, the Police Commissioner is also directing no disciplinary action. Police Officer Chu ejected the complainant from the transit system for acting disorderly. A business card was not requested by the complainant. Administrative Code Section 14-174 lists law enforcement activities which generally requires the issuance of business cards. The NYPD Administrative Guide Procedure 304-11 lists the same activities. Ejections from the transit system, absent additional factors, do not fall within the enumerated categories. Thus, Police Officer Chu was not required to issue a business card.

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Therefore, the Police Commissioner directs that Police Officer Chu receive no disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office